Bominglu Tamai @ Bhoomi vs State Nct Of Delhi on 1 September, 2025

Author: Swarana Kanta Sharma

Bench: Swarana Kanta Sharma

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
\+ BAIL APPLN. 3293/2025
BOMINGLU TAMAI @ BHOOMI
Through: Mr
Ja
Mr

versus

STATE NCT OF DELHI
Through: Mr

CORAM:
HON'BLE DR. JUSTICE SWARANA KANTA SHARMA

ORDER

% 01.09.2025 CRL.M.A. 25720/2025 (exemption)

1. Allowed, subject to all just exceptions.

2. Application stands disposed of.

BAIL APPLN. 3293/2025 (anticipatory bail) & CRL.M.A. 25721/2025 (stay/protection from arrest)

3. By way of the present bail application, the applicant is seeking anticipatory bail in case arising out of FIR bearing no. 561/2025, registered at Police Station IGI Airport, Delhi for the commission of offences punishable under Sections 318(4)/336(3)/340(2)/329(2) of Bhartiya Nyaya Sanhita, 2023 (hereafter 'BNS').

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4. Briefly stated, the FIR in this case came to be registered at PS IGI Airport against one Shahzada, the primary accused, alleging that on 09.08.2025, she had attempted to gain an unauthorised access

to the security-restricted area of I.G.I. Airport using a forged Temporary Airport Entry Pass (TAEP) bearing number DEL30D476862, purportedly in the name of being employed at Krishnarpan Hospitality Pvt. Ltd. It is stated that an investigation into the case revealed that the said entry pass had instead been issued to one Basant Kumar, an employee of EBIXCASH World Money; hence, prima facie revealing a forgery and fabricated nature of the said document. Thereafter, admittedly, the accused was sent for investigation, whereupon the name of the present applicant in the case came to light, who runs a placement agency. Allegedly, Shahzada had come into contact with one Lalit through a WhatsApp group titled 'Govt. Department Contract Basis Job", whereafter she was taken to an office in Mirayair Aviation Hospitality on 28.06.2025 where she had met the applicant. It is stated that the applicant had assured her of employment in the Airport for a payment of Rs. 60,000/- (Rupees Sixty Thousand only) with a promised monthly salary of Rs. 25,000/- (Rupees Twenty Five Thousand only) upon which she had paid Rs. 15,000/-. Thereafter, allegedly, the applicant had met one Sumit, as directed by the applicant, who had handed over the said entry pass, instructing her to join duty on 09.08.2025.

5. The learned counsel for the applicant submits that the applicant has been falsely implicated in the present case, having been named only by the accused and co-accused Sumit. Further, it is argued that no other evidentiary material, viz., cash or forged TAEP, has been recovered from her possession that can link her with the offences in question. Furthermore, it was This is a digitally signed order.

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6. The learned APP for the State, on the other hand, submits that the allegations in the instant case disclose prima-facie involvement of the applicant. It is contended that the CDR analysis and the WhatsApp chats exchanged between the applicant and the accused from 10/07/2025 till 05/08/2025 reveal that they were constantly in touch with one another qua accused's employment. Moreover, specifically, it was argued that on 05.08.2025, when the accused had sent a photo of the TAEP to the applicant, she had replied with a congratulatory message, thereby clearly showing her awareness of the status of the accused . Furthermore, it was argued that an investigation into the case revealed a larger involvement of the applicant in a job racket involving several job aspirants, wherefrom the applicant has derived a net financial benefit of up to Rs. 6.75 Lakhs, concerning which an FIR no. 446/2019 dated 25.09.2019 under Sections 420/468/471/120B of IPC was lodged and a trial is underway, thereby highlighting how forged airport passes are being used as a tool to orchestrate such financial frauds.

7. This Court has heard the arguments addressed on behalf of both parties and perused the material on record.

8. At the outset, this Court notes that the core premise of the allegations in the instant case pertains to an admitted pursuit of the applicant in securing employment at the Airport, owing to which the applicant had been approached. This Court notes that even though the applicant contends that This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 01/09/2025 at 23:54:08 she had explicitly expressed her inability to help the accused in this regard; however, the record clearly indicates otherwise. Specifically, the CDR reports' analysis shows a daily conversation of the two over phone calls, also corroborated by a perusal of WhatsApp chats from 10/07/2025 till 05/08/2025, culminating with the sharing of the TAEP pass to enter into the employment site, i.e. the Airport, by the applicant, which was shortly followed by a congratulatory message by the applicant, thereby indicating her prima facie involvement qua the accused's specific case. Furthermore, the co-accused Sumit's and accused Shahzada's disclosures further prima- facie corroborate this version.

9. Additionally, this Court notes that the applicant is facing trial in related offences concerning multiple other job aspirants, with whom the applicant had committed financial fraud on the pretext of securing jobs. In this light, this Court is of the considered view that the question as to whether forged airport passes, as alleged in the present case, are actually being used to facilitate these financial frauds, coupled with a need for interrogation to find financial trails vis-a-vis the applicant, needs to be investigated, given not only the larger socio-economic concerns raised by these offences but also by the security threats posed to the Airports by such acts. Furthermore, this Court finds that a custodial interrogation of the applicant will be needed given nascent stage of investigation

10. In light of the above, this Court is not inclined to grant anticipatory bail to the applicant.

11. Thus, the present bail application along with pending application if any stands rejected.

12. Nothing expressed hereinabove shall tantamount to an expression of This is a digitally signed order.

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13. The order be uploaded on the website forthwith.

DR. SWARANA KANTA SHARMA, J SEPTEMBER 01, 2025/vc/vs This is a digitally signed order.

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